

Diokno files bill on mandatory translation to Filipino of laws

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Akbayan party-list Rep. Chel Diokno has filed a bill seeking the mandatory translation of Philippine laws to Filipino as well as dialects Bisaya and Ilocano, saying citizens who cannot understand the law due to a language barrier are unfairly put at a disadvantage.

Diokno filed his proposal under House Bill 3863, or the Batas sa Sariling Wika Act or Law in Native Language Act.

"How can we expect ordinary citizens to follow the law if it's written in a language they can't understand?" Diokno said.

"A worker in Mindanao shouldn't need a lawyer or translator to understand the Labor Code; a mother in Ilocos should be able to read the Anti-VAWC (Violence Against Women and Children) law in her native tongue," he added.

"Bilang tagapagtanggol ng karapatang pantao sa loob ng ilang dekada na, karamihan ng mga kliyente natin ay mga ordinaryong mamamayan na hindi bihasa sa Ingles. Dehado na nga sila dahil wala silang pera at kakayahan, mas lalo pa silang dehado dahil hindi nila naintindihan ang batas," Diokno added.

(As a human rights lawyer for decades, most of my clients are ordinary Filipinos who are not well-versed in English. They are already at a disadvantage because they don't have much financial capacity, and they will be in a worse position if they do not understand the law.)

Diokno's bill seeks to amend the Revised Administrative Code of 1987 by requiring translations into the three major Philippine languages — Filipino, Bisaya, and Ilokano, which account for the country's four largest ethnolinguistic groups: Tagalog (26%), Bisaya (14.3%), Ilokano (8%), and Cebuano (8%).

"By translating laws with penalties into terms that are easily understandable by ordinary citizens in their local language, we minimize the risk of misunderstanding and misinterpretation," Diokno pointed out.

Likewise, Diokno's bill mandates that all new laws with penal provisions should be translated to the abovementioned languages within 90 days, and all existing laws with penal provisions — including the Revised Penal Code, Labor Code, RA 7610 (Special Protection of Children Against Child Abuse, Exploitation and Discrimination Act), Anti-VAWC Act, Safe Spaces Act, and the Magna Carta of Filipino Seafarers, among others, should be translated within five years.

The bill tasks the Komisyon sa Wikang Filipino (KWF) as the lead translating authority, while the Presidential Communications Office (PCO) is in charge of publishing the translations in the Official Gazette and making them available online.

The Batas sa Sariling Wika bill is co-authored by Diokno's fellow Akbayan party-list lawmakers Percival Cendaña, Dadah Kiram Ismula, as well as Dinagat Islands Rep. Arlene 'Kaka' Bag-ao. —**NB, GMA Integrated News**